



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings

- against -

Police Officer Boubacar Barry

Tax Registry No. 972522

Transit Bureau District 4
-----X

:
:
: FINAL
: ORDER
: OF
: DISMISSAL

Police Officer Boubacar Barry, Tax Registry No. 972522, having been served with written notice, has been tried on written Charges and Specifications numbered C-032077, as set forth on form P.D. 468-121, dated January 15, 2025 (amended on August 19, 2025), and after a review of the entire record, Respondent is found Guilty of the charged misconduct.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Boubacar Barry from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE:

1/2/26



POLICE DEPARTMENT

December 4, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-032077
Police Officer Boubacar Barry	:	
Tax Registry No. 972522	:	
Transit Bureau District 4	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Timothy Marsh, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Stuart London, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Boubacar Barry, on or about August 24, 2024, while off duty and assigned to Transit Bureau District 4, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: said Police Officer Barry impeded an official Department investigation into a fatal motor vehicle accident by providing misleading statements to responding officers.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

A.G. 304-10

FALSE OR MISLEADING
STATEMENTS

2. Said Police Officer Boubacar Barry, on or about August 24, 2024, while off duty and assigned to Transit Bureau District 4, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: said Police Officer Barry operated a motor vehicle on a public highway in a manner which unreasonably endangered other drivers. (*As amended*)

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. V.T.L. § 1212

RECKLESS DRIVING

3. Said Police Officer Boubacar Barry, on or about August 24, 2024, while off duty and assigned to Transit Bureau District 4, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: said Police Officer Barry failed to adequately render emergency assistance after observing a motor vehicle accident.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

4. Said Police Officer Boubacar Barry, on or about August 24, 2024, while off duty and assigned to Transit Bureau District 4, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: said Police Officer Barry wrongfully failed to safeguard his service firearm in that he stored it in a fanny pack in the trunk, and then glove compartment, of his personal vehicle.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

A.G. 305-07, Page 1, Paragraph 1

FIREARMS —
GENERAL REGULATIONS

5. Said Police Officer Boubacar Barry, on or about October 29, 2024, while on duty and assigned to Transit Bureau District 4, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: said Police Officer Barry made

misleading statements during an official Department interview. (*As added*)

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

A.G. 304-10, Pages 1 and 2

FALSE OR MISLEADING
STATEMENTS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on November 3, 2025. Respondent, through his counsel, pleaded Guilty to Specification 4, and entered a plea of Not Guilty to the remaining four charges. The Department called Sergeant Edwin Garcia and Lieutenant Christopher Kirchoff as witnesses. Respondent called Sergeant Victor Arauz and Lieutenant Mahbubur Khan as character witnesses and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Guilty of all charges and recommend a penalty of Termination.

ANALYSIS

The charges in this case stem from an allegation that in the early morning hours of August 24, 2024, Respondent, who was off duty and driving a Toyota RAV4, recklessly pursued a pickup truck on the Henry Hudson Parkway ("HHP"). After both vehicles momentarily exited the southbound HHP, Respondent followed the pickup truck back onto the northbound HHP, while both vehicles were traveling in a southbound direction, against traffic. The pickup truck collided with a Dodge Challenger, which was correctly traveling northbound, resulting in the death of the two occupants of the Dodge.

Sergeant Edwin Garcia, the lead investigator for IAB, provided a summary of what occurred. He testified that the incident began at approximately 0200 hours, when the pickup

truck sideswiped Respondent's RAV4 while both vehicles were traveling north on the HHP in the vicinity of 96th Street. The impact dislodged Respondent's front bumper (*see* Dept. Ex. 2), and the operator of the pickup truck drove off, with Respondent in pursuit. Sergeant Garcia testified that during the pursuit, Respondent called 911 to report what was happening. He told the operator he was a member of the service and provided the license plate number of the pickup truck. The operator twice told him to pull over and wait for the police, but Respondent continued the pursuit. (Dept. Exs. 1 & 1A, 911 recording and transcript) The pickup truck exited the HHP at Exit 17, in the vicinity of Dyckman Street, followed by the RAV4. As captured by surveillance footage, both vehicles then crossed over a divider and entered the southbound HHP. (Dept. Ex. 5 at 0:20-0:28) The pursuit continued south to Exit 14, where both vehicles exited the HHP. As captured by Department of Transportation ("DOT") video, the pickup truck immediately made a U-turn onto the northbound exit ramp of the HHP and entered the parkway traveling southbound, against the flow of traffic, followed by Respondent. (Dept. Ex. 7 at 1:54-2:03) They did so despite multiple signs warning "DO NOT ENTER" and "WRONG WAY," as depicted in photographs in evidence as Department Exhibit 6. (Tr. 34-40, 43-46, 52-61, 89, 94-97, 109)

The vehicle pursuit continued against traffic on the HHP for approximately one-half mile, during which time several cars passed them going north. The pickup truck, which was driving south against the flow of traffic, struck a Dodge, which was traveling north. As a result of the collision, the Dodge's two occupants were killed. Video footage from a DOT camera showed the seconds leading up to the crash, though the collision itself occurred just outside the frame of what was captured in the video. (Dept. Ex. 8, beginning at 0:32) Immediately after the impact, Respondent, who was still following the pickup truck, maneuvered his vehicle to the left as a tire

rolled by on the parkway. Respondent backed up his RAV4 into the far-right lane, then made a U-turn and pulled back into that lane so that his vehicle was now facing northbound, in the direction of traffic. Sergeant Garcia testified that Respondent exited his vehicle, walked toward the collision where the Dodge was on fire, then returned to his RAV4 where he removed his firearm from the trunk and placed it in the glove compartment. Police cars arrived at the scene and apprehended a passenger from the pickup truck, who was hiding nearby. The driver of the pickup truck fled on foot and was not immediately apprehended. (Tr. 39-40, 48, 62-72, 91-93, 98)

One of the responding officers was Sergeant Joby Thomas, whose conversation with Respondent at the scene was recorded on his BWC. (Dept. Exs. 9 & 9A) At the 12:03 mark of the video, Respondent stated that after the 911 operator told him to pull over he did so. He also told Sergeant Thomas that the driver of the pickup truck “apparently” came through the wrong way. Respondent stated that he did not know how the pickup truck ended up traveling in the wrong direction. (Dept. Ex. 9A at 8)

Lieutenant Christopher Kirchoff also responded to the location and spoke with Respondent, some of which was captured on the lieutenant’s BWC. (Dept. Exs. 10 & 10A) Lieutenant Kirchoff testified that Respondent stated he initially was following the pickup truck driver, who then went “to the wrong place.” Respondent added, “Man, I don’t know where he went.” At the 25:16 mark of the video, the lieutenant asked if he discontinued his chase and just happened to see the pickup truck again. Respondent answered, “Yeah, I [saw] him again.” (Tr. 115-16, 122, 127-28; Dept. Ex. 10A at 11-12) Sergeant Thomas’s BWC also captured Lieutenant Kirchoff asking Respondent, “So you didn’t see him turn around?” and Respondent shaking his head no. (Dept. Ex. 9 at 26:08; Tr. 79-80, 128)

After this preliminary conversation, Lieutenant Kirchoff de-activated his BWC, since the scene was secure. However, several minutes later, while still on the scene, the lieutenant was still unsure what happened leading up to the accident, and so he asked Respondent some additional questions. No one else was present during this conversation, and it was not captured on BWC. Lieutenant Kirchoff testified that Respondent stated that after the initial pursuit, he lost sight of the pickup truck driver as they were traveling north on the HHP. Respondent claimed he then turned around in his RAV4 and was proceeding southbound on the HHP when he observed the accident in the northbound lane. He recognized the pickup truck, and so he exited the parkway and entered the northbound HHP where he drove to the accident location. According to Lieutenant Kirchoff, it did not make sense that Respondent would be able to get his RAV4 from the southbound HHP to the northbound side that quickly, since the traffic came to a standstill after the collision. (Tr. 116-18, 121-23)

At an official Department interview on October 29, 2024, Respondent was questioned about the incident. Respondent stated that as he was following the pickup truck, the driver made another U-turn and went the wrong way on the parkway, and Respondent followed right behind him. Respondent maintained that he “did not see the signs of the wrong way.” He claimed that he did not realize they were traveling in the wrong direction until the pickup truck struck another vehicle. Respondent also stated that he was focused on the pickup truck, and did not notice any other vehicles passing in the opposite direction prior to the collision. (Dept. Exs. 11 & 11A at 12-13; Tr. 83-85)

Respondent testified at trial that after the pickup truck side-swiped his RAV4, he followed that vehicle north on the HHP. As he was driving, Respondent called 911 to report what had occurred (*see* Dept. Exs. 1 & 1A), and despite being told to pull over he continued to

follow the pickup truck to Exit 17, where they both exited. The pickup truck made a U-turn and headed south on the HHP, as did Respondent, until they again exited the parkway at Exit 14. After exiting, Respondent continued to follow the pickup truck as it made a U-turn back onto the highway, heading south on the northbound parkway. Respondent insisted that he did not see the posted signs warning not to enter, nor did he notice any vehicles pass him in the opposite direction. According to Respondent, he was not aware that he was driving against traffic until after the accident, when the pickup truck struck an Audi and then swerved into the Dodge, both of which were heading north. (Tr. 143-46, 159, 169-70, 173-78)

After the collision, Respondent made a U-turn so that his RAV4 was now facing north. Respondent testified that he did so in order to allow other vehicles to safely pass. Respondent removed his firearm from the trunk of his vehicle and placed it inside the glovebox. He walked over to the Dodge, where he observed people opening the door and removing the driver. Respondent claimed that he did not become involved in providing any assistance since it appeared that there already were a number of people helping the driver of the Dodge, and he did not realize there also was a front passenger inside the car. (Tr. 147-50, 181-83, 187-89, 192, 196)

Respondent waited at the scene until police arrived. He spoke with Segreant Thomas and told him that the passenger in the pickup truck had fled up the hill, where he was apprehended. Respondent testified that he also spoke with Lieutenant Kirchoff, and told him that the pickup truck had been traveling the wrong way before the accident. When the lieutenant asked him if he had been chasing the pickup truck, Respondent shook his head no. Respondent testified that the reason he did so was because the uncle of the deceased was standing nearby, and there was another individual recording with his phone who Respondent believed to be posting on the Citizen App; Respondent was concerned that if he acknowledged any role in the accident his

own safety would be at risk. According to Respondent, when he had the follow-up conversation with Lieutenant Kirchoff where no one else was standing nearby, he told him exactly what happened. Afterward, when he privately spoke with a captain about the incident, Respondent again told the full story of what had occurred. Respondent noted that English is not his first language, though he did understand the questions being asked of him at the scene. He insisted he was not trying to mislead the sergeant or lieutenant or impede the investigation. Similarly, regarding his Department interview two months later, Respondent maintained that he was being truthful when he stated that he did not realize he was traveling the wrong way until after the accident. (Tr. 151-58, 163-67, 200-01, 206, 209)

Respondent acknowledged that he used poor judgment in following the pickup truck in the manner he did, even after being told by the 911 operator to pull over. He testified that after the pickup truck sideswiped him and drove off, his “cop instinct” took over and he wanted the pickup truck to stop. The ensuing fatalities made him “feel sad,” and he wished he could go back in time and not follow the pickup truck. (Tr. 159-60, 171-72)

Respondent also called two character witnesses at trial. Lieutenant Mahbubur Khan testified that he has known Respondent since he was a rookie in his command, and that Respondent does “excellent work.” He does what is required of him, “truthfully and honestly.” Respondent is well-liked by his colleagues and supervisors. (Tr. 212-15) Sergeant Victor Arauz testified that he has been Respondent’s direct supervisor at Transit District 4 for approximately six months. He noted Respondent’s “excellent productivity,” and stated that Respondent is very well-regarded at the precinct. He added that he has never had a reason to question Respondent’s truthfulness. (Tr. 133-34)

The charges will be considered in chronological order.

Specification 2 charges Respondent with operating his vehicle in a reckless manner, thereby unreasonably endangering other motorists. The video footage in evidence conclusively shows that Respondent recklessly engaged in a lengthy pursuit of the pickup truck after his RAV4 was sideswiped. At one point during the pursuit, after exiting the northbound HHP, Respondent followed the pickup truck *over a divider* in order to get back on the parkway heading south. Worse still, after exiting the parkway a second time, Respondent entered an exit ramp, despite multiple visible warning signs, and pursued the pickup truck back onto the northbound HHP, driving *against traffic in the southbound direction*. He passed several vehicles heading in the correct direction, and the dangerous pursuit concluded only after the pickup truck collided with another vehicle, causing two fatalities.

The credible evidence has established that in operating his vehicle in this manner, Respondent consciously disregarded a substantial and unjustifiable risk of harm to other drivers. Accordingly, I find Respondent Guilty of Specification 2.

Specification 4 charges Respondent with failing to safeguard his firearm, in that he stored it in a fanny pack in the trunk of his vehicle, and then moved it to the glove compartment. Respondent pleaded guilty to this charge. He testified that prior to the incident, he had been inside a café with friends, and he left his gun inside the trunk of his RAV4. After the car accident, Respondent removed the firearm from the trunk and placed it in the glove compartment. (Tr. 147-48) The video evidence captures the moment when Respondent moves the gun to the glove compartment, before walking away from the vehicle, leaving it unattended. (Dept. Ex. 8 at 1:40)

Section 305-07 of the Administrative Guide requires UMOS to safeguard their firearms at all times. Based on the video evidence, and Respondent's admission, he failed to safeguard his firearm. Accordingly, I find Respondent Guilty of Specification 4.

Specification 3 alleges that Respondent failed to adequately render emergency assistance after observing the vehicle accident. Respondent conceded that he did not provide any such assistance to the occupants of the Dodge after the collision, nor did he call for an ambulance. He claimed the reason he did not do so was because other people in the area already were attending to the driver, and he did not even realize there was another occupant in the Dodge. As such, Respondent, a trained police officer, did nothing to assist.

Members of the service are required to maintain the standards established by the Department, whether on duty or off duty. By not providing any assistance to the victims of the car crash, or even requesting an ambulance, Respondent failed to live up to that expectation. Accordingly, I find Respondent Guilty of Specification 3.

Specification 1 charges Respondent with impeding the investigation into the motor vehicle accident by providing misleading statements to the responding officers at the scene. Specifically, it is alleged that when Respondent spoke with Sergeant Thomas and Lieutenant Kirchoff at the scene, he intentionally omitted relevant material facts surrounding the vehicle collision. Respondent denied that he was being intentionally misleading, but the credible evidence proved otherwise.

Sergeant Thomas and Lieutenant were conducting an on-scene investigation into a car accident that resulted in two fatalities. Respondent was a significant eyewitness to what had occurred. Yet, when Sergeant Thomas asked him what happened, Respondent was less than forthcoming. He told the sergeant that after his own vehicle was struck by the pickup truck, he

“followed him a little bit,” but the driver did not stop. After the 911 operator told him to pull over, he did so. Respondent then stated, “Apparently he came through a wrong way. So he -- that’s when I saw him.” Respondent added that he did not know how the driver of the pickup truck ended up in the wrong direction.” (Dept. Ex. 9A at 8) Contrary to Respondent’s account to the sergeant, the video evidence established that not only did Respondent not pull over, he pursued the pickup truck until the point of the accident. Respondent was well aware of how the driver ended up traveling in the wrong direction, since he followed the driver onto the exit ramp and continued the pursuit while both vehicles were driving against traffic on the northbound HHP.

Similarly, Respondent was intentionally misleading in his statements to Lieutenant Kirchoff. During his initial conversation with the lieutenant, which was captured by the BWC, Respondent suggested he did not know how the pickup truck driver ended up heading in the wrong direction. Respondent stated, “I follow him over there and then he went to the wrong place. Man, I don’t know where he went.” Respondent added, “When I called [911], they told me to pull over, I did that and I ended up going somewhere else.” The lieutenant asked if he just happened to see the pickup truck again, and Respondent answered, “Yeah. I [saw] him again.” (Dept. Ex. 10A at 11-12) Again, this account is contrary to the credible evidence, which established that Respondent pursued the pickup truck the entire time, including against traffic, leading up to the collision.

Additionally, Respondent also provided misleading responses during a follow-up conversation with Lieutenant Kirchoff at the scene. Although that discussion was not recorded, I credit the lieutenant’s testimony regarding their exchange. Respondent told him that after the initial pursuit, he lost sight of the pickup truck driver as they were traveling north on the HHP.

Respondent claimed he then turned around and was proceeding southbound on the HHP when he observed the accident in the northbound lane. He recognized the pickup truck, and so he exited the parkway and entered the northbound HHP where he drove to the accident location. Once again, this account is contradicted by the video evidence which shows Respondent pursuing the pickup truck the entire time. Also, as noted by Lieutenant Kirchoff, Respondent would not have been able to get his RAV4 from the southbound HHP to the northbound side that quickly, since the traffic came to a standstill after the collision.

I reject Respondent's claim that the reason he was somewhat vague during his initial conversation with Lieutenant Kirchoff was because there were other people standing nearby and he was concerned for his safety. It is plain from the evidence that Respondent, from the start, chose to be intentionally misleading in his responses to the investigating officers, in an effort to distance himself from the vehicle collision that occurred. Indeed, it is telling that Respondent provided the same misleading narrative to the lieutenant minutes later, even though there no longer were people standing in their vicinity. The record has established, by a preponderance of the credible evidence, that Respondent impeded the investigation when he made multiple misleading statements to the responding officers. Accordingly, I find him Guilty of Specification 1.

Specification 5 alleges that Respondent made misleading statements during his official Department interview on October 29, 2024. Specifically, Respondent stated during the interview that he did not see the signs at the exit ramp warning motorists not to enter. He maintained that he was focused on the pickup truck, and did not notice any vehicles passing in the opposite direction. Respondent claimed that he did not realize he was traveling the wrong way until the collision occurred. (Dept. Ex. 11A at 12-13)

At trial, Respondent continued to maintain that he did not see the signs, and that he did not realize he was driving against traffic. I reject that claim as self-serving and implausible. The video footage shows Respondent, after exiting the HHP, making a U-turn onto the exit ramp and re-entering the parkway in pursuit of the pickup truck. (Dept. Ex. 7 at 1:54-2:03) The photographs in evidence show that the exit ramp was clearly marked. There were two large “DO NOT ENTER” signs, one on the left side of the road and one on the right. There also were four signs warning, “WRONG WAY.” (Dept. Ex. 6) It is inconceivable that when Respondent made the U-turn and entered the exit ramp, he did not realize he was driving in the wrong direction. Additionally, once on the parkway, Respondent’s RAV4 was passed by several vehicles traveling in the opposite direction. (*See* Dept. Ex. 8, beginning at 0:05)

Under these circumstances, the record has established that Respondent’s statements during his official Department interview were materially misleading. He intentionally misdirected the investigators at the interview by claiming that he did not realize he was traveling in the wrong direction, in an effort to minimize his culpability. Accordingly, I find Respondent Guilty of Specification 5.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on October 12, 2021, has been found guilty of all five specifications. While off duty, he operated his vehicle in an extremely reckless manner, and then made misleading statements about his actions to investigators at the scene and during his official Department interview, thereby impeding an investigation involving multiple fatalities.

The Department Advocate recommends a penalty of Termination, arguing that the total number of penalty days for Respondent's misconduct exceeds 90 days. (*See Disciplinary Guidelines* at p. 13) Respondent urges a lesser penalty, arguing that the mistake Respondent made that night was an aberration that should not cost him his job.

Applying the Guidelines to the facts of this case, for the offense of reckless driving, given the extraordinary recklessness of the vehicle pursuit, resulting in two fatalities, the aggravated penalty of 30 days and dismissal probation is appropriate. The reckless failure to render medical assistance warrants the presumptive penalty of 30 days and dismissal probation. The presumptive penalty of 15 days should be imposed for Respondent's failure to safeguard his firearm. Respondent's misleading statements to the investigators at the scene warrant a presumptive penalty of 30 days and dismissal probation, as do his misleading statements during his official Department interview. Each of these offenses were distinct acts of misconduct by Respondent, warranting consecutive penalties, bringing the total number of penalty days to 135.

Moreover, even aside from the aggregate number of penalty days exceeding 90, the dangerous and egregious nature of Respondent's actions in this case constitutes conduct prejudicial to the good order and discipline of the Department, warranting his dismissal from the NYPD. In an alarming display of poor judgment, Respondent pursued the pickup truck onto the HHP in the wrong direction, against traffic. With his actions, Respondent demonstrated a selfish

and blatant disregard for the safety of other motorists. The unacceptably dangerous nature of this choice was underscored by what happened next: the pickup truck collided with a vehicle driving in the correct direction, tragically killing both of that vehicle's occupants. In explaining his actions of August 24, 2024, Respondent testified that it was his "cop instinct" that took over. But with his obsessive pursuit of the pickup truck, Respondent acted in a manner not befitting a trained police officer with this Department.

Making matters worse, in the immediate aftermath of the fatal collision, Respondent continued to prioritize his selfish interests. Rather than provide assistance to those in need, Respondent instead focused on turning his vehicle around so that it was facing in the correct direction of traffic, a conscious effort to conceal that he had been driving against traffic moments earlier. When police officers arrived to investigate what had occurred, Respondent impeded their efforts with misleading answers about the events leading up to the car crash. Respondent continued to provide misleading statements during his official Department interview two months later.

Taking into account the totality of facts and issues in this matter, I recommend that Respondent be DISMISSED from the Department.

Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials

APPROVED

JAN 02 2026



JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER BOUBACAR BARRY
TAX REGISTRY NO. 972522
DISCIPLINARY CASE NO. C-032077

Respondent was appointed to the Department on October 12, 2021. On his two most recent annual performance evaluations, he was rated “Exceptional” for 2023 and 2024. He has been awarded two medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials